

investigation showing no new information, Ms. Glasser was successfully served on the third attempt. There is no showing that the expenses were necessary – she was simply personally served as was originally intended.

Plaintiff 4Leaf argues that the Alameda employment case is wholly separate from this case, attempting a sleight of hand by saying that Urban37 is not a party to the Alameda case. This statement is plainly deceptive, as the individual 4Leaf was attempting to serve on behalf of Urban37 in *this* case is plaintiff *against* 4Leaf in the Alameda case. The two cases are plainly related enough that it would not have been unreasonable to reach out to Raylee Glasser’s employment attorney to inquire as to whether he would be representing her in this action. Indeed, as the Declaration of Bryan McCormack demonstrates, at the very same time, these counsel were meeting with respect to a subpoena on Urban37 in the employment matter.

Although 4Leaf has failed to show that its requested costs were reasonable, it is also the case that, upon receipt of the defective mailed service, counsel for Urban37 could have made counsel for 4Leaf aware of his representation in the new action. He never quite explains why *he* did not. In that circumstance, it does seem equitable to shift the *reasonable* cost of additional attempts at service, which would be \$128.75. The Motion is otherwise **denied**.

19. 9:00 AM CASE NUMBER: C26-00393
CASE NAME: ROBERTA JOYCE LOACH VS. EITAN COHEN
***HEARING ON MOTION IN RE: TRIAL PREFERENCE AND TRIAL SETTING**
FILED BY: LOACH, ROBERTA JOYCE
TENTATIVE RULING:

Given the Notice of Settlement, this matter was vacated.

20. 9:00 AM CASE NUMBER: C26-00948
CASE NAME: ABRAHIM YASEEN HOMRAN VS. SN SERVICING CORPORATION
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: SN SERVICING CORPORATION
TENTATIVE RULING:

The demurrer of Defendants SN Servicing Corporation and U.S. Bank Trust National Association as Trustee of LB-Igloo Series VI Trust to the complaint of Plaintiff Abraham Mohamed Yaseen Homran is **sustained without leave to amend** as to the Fifth Cause of Action (Declaratory Relief), and **sustained with leave to amend** as to the First, Second, Third, Fourth, Sixth, Seventh, and Eighth Causes of Action.

Background

Abraham Mohamed Yaseen Homran is the owner and occupant of real property located at 851 Monterey Ct., Brentwood, California, APN 007-440-002-9. In October 2023, Homran obtained a

mortgage loan in the original principal amount of \$936,000 from Paramount Residential Mortgage Group, secured by a Deed of Trust recorded on October 13, 2023. The loan was subsequently assigned to U.S. Bank Trust National Association as Trustee of LB-Igloo Series VI Trust on January 15, 2025, with SN Servicing Corporation acting as the mortgage loan servicer on behalf of U.S. Bank.

On June 27, 2025, Prestige Default Services, LLC, as the substituted trustee, recorded a Notice of Default alleging that Homran had defaulted on his loan obligations as of August 1, 2024, with arrearages totaling \$114,832.59. Rather than proceed immediately to foreclosure, Homran and the defendants entered into a Loan Workout Agreement on September 5, 2025, under which the defendants agreed to postpone foreclosure proceedings in exchange for Homran's agreement to pay the total reinstatement amount of \$136,519.13 through a down payment and three subsequent monthly installments beginning in October 2025. The Agreement expressly provided that "Lender will postpone foreclosure proceedings during the pendency of this Agreement." However, the Agreement also provided that "This Agreement, and the forbearance of foreclosure proceedings, will be terminated immediately upon Borrower default of this Agreement, or any other provision of the Loan Documents, which remain fully enforceable." The Agreement further stated that if Homran defaulted, the Agreement would be voided and "only full payment of the Reinstatement or full payoff of the total amount then due under the Loan will stop the reactivated foreclosure." Homran alleges he paid \$100,000 toward the reinstatement amount, consisting of an \$80,000 wire transfer on September 9, 2025 and a \$20,000 payment on September 25, 2025.

Despite accepting Homran's payments and agreeing to postpone foreclosure, the defendants recorded a Notice of Trustee's Sale on December 16, 2025, setting the foreclosure sale for January 21, 2026, and stating a total indebtedness of \$988,349.79. Homran alleges he did not receive the Notice of Trustee's Sale prior to the scheduled sale date. Homran also alleges he was unable to tender the remaining reinstatement amount at that time due to extraordinary medical expenses incurred on behalf of his mother, though he has since regained financial stability and now possesses both the ability and willingness to tender any lawful reinstatement amount.

The sale proceeded on January 21, 2026, and the Trustee's Deed Upon Sale was recorded on February 17, 2026, as Instrument No. 2026-0015188. The deed recites that U.S. Bank, as Trustee of LB-Igloo Series VI Trust, acquired the Property by credit bid in the amount of \$991,996.75.

Homran filed this action on March 18, 2026, after the January 21, 2026 trustee's sale and the February 17, 2026 recording of the Trustee's Deed Upon Sale. Homran contends that the Defendants' recorded Notice of Trustee's Sale was made in breach of their written agreement to postpone proceedings, that defendants failed to provide him fair notice and opportunity to cure, that Defendants violated California foreclosure statutes, and engaged in fraudulent conduct.

Defendants SN Servicing Corporation and U.S. Bank Trust National Association now demur to each of the eight causes of action in the complaint. They argue plaintiff's own allegations establish he defaulted on the Loan Workout Agreement by failing to make the October, November, and December installment payments after paying \$100,000 in September toward the \$136,519.13 reinstatement amount. The wrongful foreclosure, cancellation of instruments, and quiet title claims fail because plaintiff does not plead that he tendered, a valid excuse from tender, or any significant defect in the sale process. Separately, Defendant argues that the Civil Code section 2923.55 and fraud claims are barred because they rest on pre-September 5, 2025 conduct that was released in the Loan Workout

Agreement. The promissory estoppel and breach of contract claims fail because plaintiff pleads his own nonperformance and does not plead the operative terms of the agreement with sufficient completeness to show breach rather than permitted contractual remedy.

Meet and Confer

CCP section 430.41 requires that before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (CCP §430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (CCP §430.41(a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (CCP §430.41(a)(3).)

Defendants have complied with meet and confer obligations. Defendants counsel declares that she attempted to meet and confer with Plaintiff's counsel, and Plaintiff's counsel did not respond.

Demurrer Standard

"A demurrer tests the legal sufficiency of the factual allegations in a complaint." (*Yalung v. State* (2023) 98 Cal.App.5th 71, 80.) In reviewing a complaint's legal sufficiency, a court will treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law. (*Esparza v. Kaweah Delta Dist. Hospital* (2016) 3 Cal.App.5th 547, 552.) It is well settled that a "demurrer lies only for defects appearing on the face of the complaint[.]" (*Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601.) For purposes of ruling on a demurrer, the complaint must be construed liberally by drawing reasonable inferences from the facts pleaded. (*Wilner v. Sunset Life Ins. Co.* (2000) 78 Cal.App.4th 952, 958.)

"Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. [Citation.] Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.)

Analysis

Request for Judicial Notice

Defendants request that the Court take judicial notice, pursuant to Evidence Code sections 452 and 453, of six documents that are matters of public record recorded in the Official Records of Contra Costa County: (1) the Deed of Trust dated October 6, 2023, recorded October 13, 2023 as Instrument No. 2023-0100546; (2) the Assignment of Deed of Trust recorded January 15, 2025 as Instrument No. 2025-0004403; (3) the Substitution of Trustee recorded June 27, 2025 as Instrument No. 2025-0064788; (4) the Notice of Default and Election to Sell Under Deed of Trust recorded June 27, 2025 as Instrument No. 2025-0064789; (5) the Notice of Trustee's Sale recorded December 16, 2025 as Instrument No. 2025-0140164; and (6) the Trustee's Deed Upon Sale recorded February 17, 2026 as Instrument No. 2026-0015188.

Defendants' Request for Judicial Notice is **granted**. (Evid. Code §§ 452 (d) and (h); see also *Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal. App. 4th 256, 264.) The Court does not, however, take judicial notice of the truth of matters stated in the recorded documents. (*Poseidon Development, Inc. v. Woodland Lane Estates, LLC* (2007) 152 Cal. App. 4th 1106, 1117-18.)

First Cause of Action for Wrongful Foreclosure

The first cause of action alleges wrongful foreclosure. The elements of wrongful foreclosure are (1) an illegal, fraudulent, or willfully oppressive sale of real property pursuant to a power of sale in a mortgage or deed of trust; (2) prejudice or harm to the party attacking the sale; (3) the trustor or mortgagor tendered the amount of the secured indebtedness or was excused from tendering; and (4) the mortgagor or trustor did not breach a condition or fail to perform such that it would have authorized the foreclosure or exercise of the power of sale. (*Majd v. Bank of America, N.A.* (2015) 243 Cal.App.4th 1293, 1306-1307.) "[M]ere technical violations of the foreclosure process will not give rise to a tort claim; the foreclosure must have been entirely unauthorized on the facts of the case." (*Miles v. Deutsche Bank National Trust Co.* (2015) 236 Cal.App.4th 394, 409.)

Defendants argue the claim fails because plaintiff does not plead tender or any valid excuse from tendering, and does not plead any actionable defect in the completed sale itself. Plaintiff alleges he lacked the ability to tender during the relevant period, was unable to pay the remaining reinstatement balance due under the Loan Workout Agreement, and remained uncertain what amount was due. Allegations that plaintiff is now "willing and able" to tender some unspecified amount do not satisfy the tender requirement for setting aside a completed trustee's sale, and plaintiff pleads no recognized exception. Those same allegations also defeat the prejudice element because plaintiff's own pleading attributes the foreclosure to his inability to complete reinstatement, not to actionable misconduct by defendants.

Plaintiff does not argue that there was a defect in the sale process itself, that the trustee lacked authority, or that the sale was conducted improperly. Instead, plaintiff's bases his argument on the tender exception, arguing that because defendants breached the Loan Workout Agreement by foreclosing despite accepting substantial payments and promising to postpone, defendants lacked a contractual basis to exercise the power of sale, and therefore tender is excused.

Plaintiff relies on a line of California cases holding that tender is excused where a borrower alleges an enforceable modification or forbearance agreement, substantial performance under that agreement, and that the lender nonetheless foreclosed. In *Barroso v. Ocwen Loan Servicing, LLC* (2012) 208 Cal.App.4th 1001, the homeowner alleged she had an enforceable loan modification agreement with the beneficiary and that she made all subsequent payments when they were due. (*Barroso*, 208 Cal.App.4th at p. 1017.) The loan servicer accepted the homeowner's payments under the modification agreement but nonetheless proceeded with the foreclosure sale. (*Id.* at pp. 1004–1006.) The court held that because the homeowner performed in accordance with her contractual obligations, the loan servicer had no contractual right to sell the property and therefore the homeowner did not have to tender the full loan amount. (*Id.* at p. 1017.)

In *Chavez v. Indymac Mortgage Services* (2013) 219 Cal.App.4th 1052, the homeowner signed and returned the loan modification agreement and made all required payments "on time by personal check" until the defendants breached by refusing to accept her October payment. (*Chavez*, 219

Cal.App.4th at p. 1056.) The Court of Appeal reversed the trial court's demurrer, holding that the homeowner "sufficiently alleged an exception to the tender rule that the foreclosure sale was void because Defendants lacked a contractual basis to exercise the power of sale as [her] original loan had been modified under the [agreement] and [she] fully performed under the [agreement] until Defendants breached the agreement by refusing payment." (*Id.* at pp. 1062–1063.)

Plaintiff claims his allegations "track *Barroso* and *Chavez* precisely: an enforceable workout agreement, substantial performance, acceptance of funds, and foreclosure notwithstanding." (Opp. p. 4:24-28.) This characterization is inaccurate. In both *Barroso* and *Chavez*, the borrower performed all contractual obligations under loan modification agreements. They did not argue that partial performance satisfied their contractual duties but performed in full until the lender breached. Here, plaintiff admittedly made only two payments in September 2025 totaling \$100,000 toward a \$136,519.13 reinstatement amount, then defaulted in the Loan Workout Agreement's payment schedule by failing to make any of the three required monthly installments of \$28,032.17 each beginning in October 2025.

To establish substantial performance, a plaintiff must prove both that he made a good faith effort to comply with the contract and that the defendant received essentially what the contract called for because the plaintiff's failures were so trivial or unimportant that they could have been easily fixed or paid for. (CACI No. 312.) Plaintiff has not pleaded substantial performance. His complaint alleges he made two payments in September 2025 totaling \$100,000, then failed to make any of the three monthly installment payments of \$18,839.71 each beginning in October 2025. He cannot plead that he made a good faith effort to comply when he admits he "was unable to tender the remaining balance of the reinstatement amount." (Compl. ¶ 20.) Nor can he plead that defendants received essentially what the contract called for when he failed to perform three monthly installments.

Further, the Loan Workout Agreement appears to make strict compliance with the payment schedule essential. The Agreement provides that forbearance "will be terminated immediately upon Borrower default of this ... or any other provision of the Loan Documents, which remain fully enforceable." (Agreement, § 5.) "The law is settled that when it appears from the agreement that the parties have made time of the essence, strict performance is required unless it is excused." (*Donnellan v. Rocks* (1972) 22 Cal.App.3d 925, 929.) Plaintiff's failure to make the October, November, and December installment payments triggered the Agreement's automatic termination clause and gave defendants a contractual right to resume foreclosure. Applying the doctrine of substantial performance would defeat that bargain.

The Court finds that Plaintiff has not adequately alleged an exception to the tender rule based on the argument that Defendants lacked a contractual basis to exercise the power of sale. Thus, the demurrer to the first cause of action is **sustained with leave to amend**.

Second Cause of Action for Promissory Estoppel

As to the second cause of action for promissory estoppel, the demurrer is **sustained without leave to amend**. Plaintiff fails to state sufficient facts to state a cause of action.

"The elements of a promissory estoppel claim are (1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3)[the] reliance must be both reasonable and

foreseeable; and (4) the party asserting the estoppel must be injured by his reliance." (*Aceves v. U.S. Bank, N.A.* (2011) 192 Cal.App.4th 218, 225.)

In support of this cause of action, Plaintiff alleges that "Defendants represented that foreclosure would be placed on hold upon receipt of executed repayment documentation and a \$100,000.00 payment." (Compl. ¶ 32.) Plaintiff fails to allege a clear and unambiguous promise. He does not identify which representative made the statement, on what date, or in what specific language. More critically, Plaintiff fails to allege that defendants promised an indefinite postponement of foreclosure. Instead, the written Loan Workout Agreement Plaintiff executed on September 5, 2025 expressly provides that forbearance is conditioned on the pendency of the Agreement and "will be terminated immediately upon Borrower default of this Agreement, or any other provision of the Loan Documents." (Agreement, § 5.) It is difficult to understand how Plaintiff can allege an oral promise of unlimited forbearance when the written agreement he signed clearly defines the scope and duration of the postponement. The promise alleged is vague and seemingly, fundamentally at odds with the written terms Plaintiff accepted.

Third Cause of Action for Breach of Contract

Plaintiff alleges two separate breach of contract theories. First, he alleges defendants breached the Loan Workout Agreement by continuing foreclosure proceedings and recording a Notice of Trustee's Sale despite agreeing to postpone foreclosure during the pendency of the Agreement. (Compl. ¶ 37.) Second, he alleges defendants breached the original Deed of Trust by failing to provide accurate reinstatement figures, failing to properly credit payments, and initiating foreclosure despite plaintiff's ability and efforts to cure. (Compl. ¶¶ 38-41.) Plaintiff contends the Deed of Trust requires notice of any loan servicer change. (Compl. ¶ 39.)

The elements of a breach of contract claim are: (1) a contract; (2) plaintiff's performance of the contract (or excuse for nonperformance); (3) defendant's breach; and (4) resulting damage to the plaintiff. (*Reichert v. General Ins. Co.* (1968) 68 Cal.2d 822, 830.)

As to the Loan Workout Agreement, plaintiff fails to allege performance or a valid excuse for nonperformance. Although the complaint alleges in a conclusory fashion that plaintiff "performed all conditions, covenants, and promises required on his part," his specific factual allegations establish the opposite. He admits he lacked the ability to tender during the hardship period and was unable to pay the remaining reinstatement balance. (Compl. ¶¶ 16, 20, 42.) He made only two payments in September totaling \$100,000, then failed to make any of the three required monthly installment payments of \$18,839.71 each beginning in October 2025. Specific factual allegations control over contrary conclusions.

As to the Deed of Trust theory, plaintiff fails to allege resulting damages. He alleges defendants failed to provide notice of the loan servicer change and failed to provide accurate reinstatement figures, but alleges no damages flowing from these breaches. Plaintiff plainly knew SN was the servicer because he entered into the Loan Workout Agreement with defendants and made payments based on their communications.

The demurrer to the third cause of action is therefore **sustained with leave to amend**.

Fourth Cause of Action for Cancellation of Instruments

The necessary elements for cancellation of instrument are: (1) a written instrument; (2) a reasonable apprehension that it may cause serious injury to someone; (3) as to whom it is void or voidable. (Civ. Code § 3412.) A plaintiff must also tender to state a claim for cancellation. (See, e.g., *Weger v. Rocha* (1934) 138 Cal. App. 109, 116 ["in the cancellation or rescission of contracts, it is incumbent upon the parties seeking rescission to restore everything of value that has been received."].)

Plaintiff fails to allege tender or any excuse from tendering. As discussed above, plaintiff admits he lacked the ability to tender the remaining reinstatement balance and does not allege that he can now tender the full secured debt or the reinstatement amount required under the Loan Workout Agreement. Without pleading tender or a valid excuse from tendering, plaintiff cannot state a claim for cancellation of the Notice of Default, Notice of Trustee's Sale, or Trustee's Deed Upon Sale.

The demurrer to the Fourth Cause of Action is therefore **sustained with leave to amend**.

Fifth Cause of Action for Declaratory Relief

Plaintiff seeks a declaration that the foreclosure was invalid, that the Notice of Default and Notice of Trustee's Sale are invalid, and that defendants lacked the right to foreclose. Those same issues are already placed at issue by the wrongful foreclosure, breach of contract, cancellation, and quiet title claims.

A claim for declaratory relief may not be used to assert an additional cause of action for the determination of issues identical to those raised in Plaintiff's other causes of action. (See *Hood v. Superior Court* (1995) 33 Cal.App.4th 319, 324.) The issues sought to be determined by the declaratory relief claim (the validity of the foreclosure and the instruments supporting it, and whether defendants had the right to foreclose) are already raised in plaintiff's substantive causes of action. There is nothing separate for the Court to declare.

The demurrer to the fifth cause of action for declaratory relief is **sustained without leave to amend** as duplicative of Plaintiff's other causes of action.

Sixth Cause of Action for Violation of Civil Code Section 2923.55

The sixth cause of action is for violation of Civil Code section 2923.55 which provides that before filing a notice of default, a mortgage servicer "shall contact the borrower in person or by telephone in order to assess the borrower's financial situation and explore options for the borrower to avoid foreclosure." (Civ. Code § 2923.55(b)(2).) In order to state a claim for violation of Civil Code section 2923.55, a plaintiff must establish "a material violation" of this provision. (*Cornejo v. Ocwen Loan Servicing* (E.D. Cal. 2015) 151 F.Supp.3d 1102, 1114.)

Plaintiff alleges that SN Servicing Corporation failed to contact him in person or by telephone prior to recording the Notice of Default or initiating the foreclosure process. (Compl. ¶ 55.) Plaintiff further alleges that SN failed to postpone or otherwise adjust the payment plan after plaintiff tendered funds pursuant to an agreement to cure the default. (Id.) Plaintiff contends that had SN exercised due diligence in contacting him at his residence, he would have become aware of the Trustee Sale and

been able to tender funds timely. (Id.) Plaintiff would have been able to explore foreclosure alternatives, repayment options, or reinstatement had defendants complied with section 2923.55. (Compl. ¶ 56.)

Defendants argue the sixth cause of action fails for two reasons. First, any pre-Loan Workout Agreement claim was released. The Loan Workout Agreement, dated September 5, 2025, contains a broad release in which plaintiff released defendants and related parties from all claims, known or unknown, existing before execution of the agreement, and expressly waived Civil Code section 1542. Plaintiff's section 2923.55 claim is, by its nature, based on alleged contact failures that occurred before the Notice of Default was recorded on June 27, 2025, more than two months before the Loan Workout Agreement. Any such claim therefore arose before September 5, 2025 and falls within the scope of the release.

Second, Defendants argue that Plaintiff fails to plead sufficient facts showing a material violation and resulting harm. The Court first notes that Plaintiff's allegation that Defendants should have contacted him so he would become aware of the Trustee Sale and tender funds timely mischaracterizes the purpose of section 2923.55, which requires contact to assess financial circumstances and explore alternatives to foreclosure, not to provide notice of the impending sale. Beyond this, Plaintiff's own allegations establish that loss-mitigation contact occurred. He entered into the Loan Workout Agreement on September 5, 2025, demonstrating that defendants assessed his financial circumstances and explored foreclosure alternatives with him. More importantly, plaintiff's own allegations attribute the foreclosure to his inability to complete the reinstatement payments, not to any failure by defendants to contact him or explore alternatives. Plaintiff has failed to plead a causal connection between his alleged damages and a material violation of section 2923.55. While a borrower may recover actual economic damages for a material violation of section 2923.55 after the Trustee's Deed has been recorded (Civ. Code §§ 2924.12(b), 2924.19(b)), such damages are only available where the violation materially caused the harm alleged. Plaintiff has not adequately pleaded this causal connection.

The demurrer to the sixth cause of action is **sustained with leave to amend** for Plaintiff to adequately plead a material violation of section 2923.55, a causal connection between that violation and resulting economic damages, and to plead some basis to avoid the Loan Workout Agreement's release provision as it applies to pre-September 5, 2025 claims.

Seventh Cause of Action for Fraudulent Inducement or Promissory Fraud

The seventh cause of action is labeled "fraudulent inducement/promissory fraud." The elements of promissory fraud or fraud in the inducement are (1) the defendant made a promise to the plaintiff, (2) at the time the promise was made, the defendant did not intend to perform the promise; (3) the defendant intended to cause the plaintiff to rely on the promise; (4) the plaintiff reasonably relied on the promise; and (5) the plaintiff was harmed as a result. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638-639.)] "To establish a claim of fraudulent inducement, one must show that the defendant did not intend to honor its contractual promises when they were made." (*Food Safety Net Services v. Eco Safe Systems USA, Inc.* (2012) 209 Cal.App.4th 1118, 1131.) In addition, fraud requires the pleading of facts showing "how, when, where, to whom, and by what means the representations were made." (*Stansfield v. Starkey* (1990) 220 Cal. App. 3d 59, 73.) A fraud action against a corporation requires the plaintiff to plead the name(s) of the persons(s) who made the allegedly

fraudulent representations, his/her authority to speak, to whom he/she spoke, what he/she said or wrote, and when it was said or written. (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.) It is also true that "[l]ess specificity is required when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy." (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 216.)

Plaintiff alleges that Defendants fraudulently induced him to remit \$100,000 under the Loan Workout Agreement by misrepresenting that foreclosure would be postponed. (Compl. ¶¶ 58, 60.) At the time these representations were made, defendants knew or should have known that foreclosure proceedings would continue or that they did not intend to fully honor the repayment agreement as represented. (Compl. ¶ 61.) Defendants made these representations with the intent to induce plaintiff to remit substantial funds. (Compl. ¶ 62.) Plaintiff reasonably relied on Defendants' representations and, in reliance thereon, wired \$100,000 and executed the repayment agreement. (Compl. ¶ 63.) Despite plaintiff's performance and substantial payment, Defendants proceeded with foreclosure activity, including recording the Notice of Trustee's Sale. (Compl. ¶ 64.) Plaintiff characterizes Defendants' conduct as promissory fraud on that they allegedly made promises without the intent to perform or with reckless disregard for whether they would perform. (Compl. ¶ 65.) As a result, Plaintiff suffered damages including loss of funds, threatened loss of the Property, attorney's fees, costs, and emotional distress. (Compl. ¶¶ 66-67.)

Defendants argue the claim fails to state facts sufficient to constitute a cause of action because Plaintiff does not plead fraud with the specificity required by California law, and any pre-Agreement fraud claim was released in the Loan Workout Agreement.

Plaintiff's opposition acknowledges that the complaint does not identify the specific individuals at SN or U.S. Bank who made the postponement representations, or the precise dates and method by which they were communicated, appears to concede that defendants' challenge on this ground is well taken. However, plaintiff argues that the specificity requirement is relaxed where the defendant must necessarily possess full information concerning the facts of the controversy. Plaintiff contends that the identity of the SN or U.S. Bank representative who negotiated the Loan Workout Agreement is known exclusively to defendants through their own personnel and servicing records. However, to the extent the Court finds the current allegations insufficient, plaintiff requests leave to amend to add the requisite specificity. Plaintiff's opposition does not address defendants' argument that any pre-September 5, 2025 fraud claims are barred by the release and Civil Code section 1542 waiver contained in the Loan Workout Agreement itself.

The demurrer to the seventh cause of action is **sustained with leave to amend**. Plaintiff has leave to amend to plead his fraud claim with specificity, and facts to support an inference that the promise was made without intent to perform, and to plead a basis to avoid the release provision in the Loan Workout Agreement.

Eighth Cause of Action for Quiet Title

Plaintiff seeks to quiet title to the Property against all claims of defendants and Does 1–20. (Compl. ¶ 69.) Plaintiff alleges his title is superior to that of defendants to the Property. (Compl. ¶ 70.)

An action for quiet title seeks "to establish title against adverse claims to real or personal property or any interest therein." (CCP, § 760.020, subd. (a).) In an action for quiet title, Plaintiff must plead (1) "[a] description of the property that is the subject of the action," specifically the location of tangible personal property and the legal description and street address or common designation of real property, (2) "[t]he title of the plaintiff as to which a determination under this chapter is sought and the basis of the title," (3) "[t]he adverse claims to the title of the plaintiff against which a determination is sought," (4) "[t]he date as of which the determination is sought," and (5) "[a] prayer for the determination of the title of the plaintiff against the adverse claims." (CCP § 761.020.)

Tender is generally required for quiet title claims. (*Lueras v. BAC Home Loans Servicing, LP* (2013) 221 Cal.App.4th 49, 86-87; *Sierra-Bay Federal Land Bank Association v. Superior Court* (1991) 227 Cal.App.3d 318, 337 [finding a debtor must make a tender or otherwise offer to pay his debt to quiet title].)

Defendants argue the quiet title claim fails for the following reasons. First, because legal title vested in U.S. Bank upon recordation of the Trustee's Deed Upon Sale on February 17, 2026. A properly conducted nonjudicial foreclosure sale is a final adjudication of borrower-lender rights, and the Trustee's Deed Upon Sale conveys title free and clear of the trustor's interest. (*Arnolds Management Corp. v. Eischen* (1984) 158 Cal.App.3d 575, 578-579; *Melendrez v. D & I Investment, Inc.* (2005) 127 Cal.App.4th 1238, 1249.) Plaintiff therefore cannot allege superior record title. Second, because a mortgagor cannot quiet title against the mortgagee without paying the debt secured. (*Shimpones v. Stickney* (1934) 219 Cal. 637, 649.) Third, the complaint does not satisfy Code of Civil Procedure section 761.020 because it does not adequately plead the basis of plaintiff's title, the specific adverse claims at issue, or the date as of which title is sought.

At a minimum, Plaintiff fails to adequately allege tender or otherwise offer to pay the debt. Instead, Plaintiff alleges he "has the ability to tender and is willing to tender an outstanding amount subject to equitable damages suffered by Plaintiff because of Defendants' misconduct." (Compl. ¶ 23.) To maintain this cause action, Plaintiff is required to allege an unconditional offer of performance of his obligations under the Note, with the ability and willingness to perform. (*Abdallah v. United Savings Bank* (1996) 43 Cal.App.4th 1101, 1109; see also *Karlsen v. American Savings & Loan Assn.* (1971) 15 Cal.App.3d 112, 117.)

The demurrer to the eighth cause of action is **sustained with leave to amend**.

Disposition

The demurrer of Defendants SN Servicing Corporation and U.S. Bank Trust National Association as Trustee of LB-Igloo Series VI Trust to the complaint of Plaintiff Abraham Mohamed Yaseen Homran is **sustained without leave to amend** as to the Fifth Cause of Action (Declaratory Relief), and **sustained with leave to amend** as to the First, Second, Third, Fourth, Sixth, Seventh, and Eighth Causes of Action.

Defendants shall prepare the order and file and serve notice of entry of order. Plaintiff has thirty days from notice of entry of order in which to amend the complaint. If Plaintiff fails to amend within to time permitted by this order, defendants may move to dismiss the complaint pursuant to Code of Civil Procedure section 581(f)(2).